

Decided

Students for Fair Admissions Inc. v. President & Fellows of Harvard College

Docket No. [20-1199](#)

Op. Below [1st Cir.](#)

Argument Oct 31, 2022

Vote 6-2

Author [John Roberts](#)

Opinion [Jun 29, 2023](#)

Term [October Term 2022](#)

[SCOTUS Page](#) [Opinion](#)

Holding

The admissions programs at Harvard College and the University of North Carolina violate the equal protection clause of the 14th Amendment.

Judgment

[Reversed](#), 6-2, in an opinion by John Roberts on Jun 29, 2023. Justice Thomas filed a concurring opinion. Justice Gorsuch filed a concurring opinion, in which Justice Thomas joined. Justice Kavanaugh filed a concurring opinion. Justice Sotomayor filed a dissenting opinion, in which Justice Kagan joined. Justice Jackson took no part in the consideration or decision of the case.

Proceedings & orders timeline

Color key

Oldest first

[Feb 25, 2021](#)

[Petition for a writ of certiorari filed. \(Response due March 31, 2021\)](#) [Mar 3, 2021](#)

[Motion to extend the time to file a response from March 31, 2021 to May 17, 2021, submitted to The Clerk.](#)

Mar 4, 2021

Motion to extend the time to file a response is granted and the time is extended to and including May 17, 2021.

[Mar 23, 2021](#)

[Brief amici curiae of Gail Heriot and Peter N. Kirsanow filed.](#)*Mar 25, 2021*

[Brief amicus curiae of Southeastern Legal Foundation filed.](#)*Mar 25, 2021*

[Brief amicus curiae of Professor David E. Bernstein filed.](#)*Mar 26, 2021*

[Brief amicus curiae of Economists in Support of Petitioner filed.](#)*Mar 29, 2021*

[Brief amicus curiae of National Association of Scholars filed.](#)*Mar 30, 2021*

[Brief amicus curiae of Speech First filed.](#)*Mar 30, 2021*

[Brief amicus curiae of Texas filed.](#)*Mar 30, 2021*

[Brief amici curiae of Pacific Legal Foundation, Reason Foundation, Center for Equal Opportunity, Individual Rights Foundation, Chinese American Citizens Alliance - Greater New York, Coalition for TJ, and Yi Fang Chen filed.](#)*Mar 31, 2021*

[Brief amicus curiae of Jewish Coalition for Religious Liberty filed.](#)*Mar 31, 2021*

[Brief amicus curiae of Hamilton Lincoln Law Institute filed.](#)*Mar 31, 2021*

[Brief amici curiae of The Louis D. Brandeis Center for Human Rights Under Law and the Silicon Valley Chinese Association Foundation filed.](#)*Mar 31, 2021*

[Brief amicus curiae of Center for Constitutional Jurisprudence filed.](#)*Mar 31, 2021*

[Brief amicus curiae of Former Attorney General Edwin Meese III filed.](#)*Mar 31, 2021*

[Brief amici curiae of State of Oklahoma, et al. filed.](#)*Mar 31, 2021*

[Brief amici curiae of Judicial Watch, Inc. and Allied Educational Foundation filed.](#)*Mar 31, 2021*

[Brief amicus curiae of Richard Sander in support of neither filed.](#)*Mar 31, 2021*

[Brief amici curiae of The Asian American Coalition For Education and The Asian American Legal Foundation filed.](#)*Mar 31, 2021*

[Brief amicus curiae of The Californians for Equal Rights Foundation filed.](#)*Mar 31, 2021*

[Brief amicus curiae of Former Federal Officials of the Department of Education's Office for Civil Rights filed.](#)*Mar 31, 2021*

[Brief amicus curiae of The Liberty Justice Center filed.](#)*May 17, 2021*

[Brief of respondent President and Fellows of Harvard College in opposition filed.](#)*May 19, 2021*

[Letter waiving the 14-day waiting period for the filing of a reply pursuant to Rule 15.5 filed.](#)*May 24, 2021*

[Reply of petitioner Students for Fair Admissions, Inc. filed. \(Distributed\)](#)

May 25, 2021

DISTRIBUTED for Conference of 6/10/2021.

Jun 14, 2021

The Acting Solicitor General is invited to file a brief in this case expressing the views of the United States.

Dec 8, 2021

Amicus brief of United States not accepted for filing. (December 09, 2021 - to be corrected and reprinted)

[Dec 8, 2021](#)

[Brief amicus curiae of United States filed. Dec 21, 2021](#)

[Supplemental brief of respondent President and Fellows of Harvard College filed. \(Distributed\)](#)

Dec 22, 2021

DISTRIBUTED for Conference of 1/7/2022.

[Dec 22, 2021](#)

[Supplemental brief of petitioner Students for Fair Admissions, Inc. filed. \(Distributed\)](#)

Jan 10, 2022

DISTRIBUTED for Conference of 1/14/2022.

Jan 18, 2022

DISTRIBUTED for Conference of 1/21/2022.

Jan 24, 2022

Petition GRANTED. The petition for a writ of certiorari in No. 21-707 is granted. The cases are consolidated, and a total of one hour is allotted for oral argument. VIDED.

Jan 24, 2022

Because the Court has consolidated these cases for briefing and oral argument, future filings and activity in the cases will now be reflected on the docket of No. 20-1199. Subsequent filings in these cases must therefore be submitted through the electronic filing system in No. 20-1199. Each document submitted in connection with one or more of these cases must include on its cover the case number and caption for each case in which the filing is intended to be submitted. Where a filing is submitted in fewer than all of the

cases, the docket entry will reflect the case number(s) in which the filing is submitted; a document filed in all of the consolidated cases will be noted as "VIDED."

Feb 2, 2022

Joint motion for an extension of time to file the briefs on the merits filed. VIDED.*Feb 2, 2022*

Application (21A393) of petitioner to file consolidated opening and reply briefs on the merits in excess of the word limits, submitted to The Chief Justice. VIDED.

Feb 4, 2022

Joint motion to extend the time to file the briefs on the merits granted. The time to file the joint appendix and petitioner's brief on the merits is extended to and including May 2, 2022. The time to file respondents' briefs on the merits is extended to and including July 25, 2022. VIDED.

Feb 7, 2022

Notice of Change of Address of Speech First not accepted for filing. (February 15, 2022)

Feb 8, 2022

Application (21A393) of petitioner to file consolidated opening and reply briefs on the merits in excess of the word limits granted by The Chief Justice. VIDED.

Mar 25, 2022

Blanket Consent filed by Petitioner, Students for Fair Admissions, Inc.*Mar 25, 2022*

Blanket Consent filed (in 21-707) by Respondent, Cecilia Polanco, et al.*Mar 28, 2022*

Blanket Consent filed by Respondent, President and Fellows of Harvard College*Mar 31, 2022*

Blanket Consent filed by Respondent, The University of North Carolina, et al.*May 2, 2022*

Brief of petitioner Students for Fair Admissions, Inc. filed. VIDED.*May 2, 2022*

Joint appendix -4 Volumes (as to 20-1199) filed (statement of costs filed).*May 2, 2022*

Motion for leave to file Volume IV of the joint appendix under seal filed by respondents Cecilia Polanco, et al. (as to 21-707).*May 2, 2022*

Proposal of petitioner to lodge declarations of SFFA President and identified members recently denied admission to Harvard and UNC filed. VIDED.*May 2, 2022*

Joint appendix - 3 volumes (as to 21-707) filed (statement of costs filed).*May 3, 2022*

[Brief amici curiae of The Liberty Justice Center and Momoko Takahashi filed. VIDED.May 3, 2022](#)

[Brief amicus curiae of Professor David E. Bernstein filed. VIDED.May 4, 2022](#)

[Brief amicus curiae of Southeastern Legal Foundation filed \(in 20-1199\).May 5, 2022](#)

[Brief amicus curiae of Professor Fiona A. Harrison in Support of Neither Party filed.May 5, 2022](#)

[Brief amicus curiae of The Louis D. Brandeis Center for Human Rights Under Law and the Silicon Valley Chinese Association Foundation filed. VIDED.May 5, 2022](#)

[Brief amici curiae of Pacific Legal Foundation, et al. filed. VIDED.May 6, 2022](#)

[Brief amicus curiae of Speech First filed. VIDED.May 6, 2022](#)

[Brief amicus curiae of LONANG Institute filed. VIDED.May 6, 2022](#)

[Brief amicus curiae of National Association of Scholars filed. VIDED.May 6, 2022](#)

[Brief amici curiae of Former Federal Officials of the Department of Education's Office for Civil Rights filed. VIDED.May 9, 2022](#)

[Brief amici curiae of Judicial Watch, Inc. and Allied Educational Foundation filed. VIDED.May 9, 2022](#)

[Brief amici curiae of Economists in Support of Petitioner filed. VIDED.May 9, 2022](#)

[Brief amici curiae of Hamilton Lincoln Law Institute filed. VIDED.May 9, 2022](#)

[Brief amicus curiae of Veterans for Fairness and Merit filed. VIDED.May 9, 2022](#)

[Brief amici curiae of American Center for Law & Justice and Devon Westhill filed. VIDED.May 9, 2022](#)

[Brief amici curiae of United States Senators and Representatives filed. VIDED.May 9, 2022](#)

[Brief amicus curiae of The Californians for Equal Rights Foundation filed. VIDED.May 9, 2022](#)

[Brief amici curiae of Oklahoma, et al. filed. VIDED.May 9, 2022](#)

[Brief amicus curiae of America First Legal Foundation in support of neither party filed.May 9, 2022](#)

[Brief amicus curiae of Project 21 filed. VIDED.May 9, 2022](#)

[Brief amicus curiae of Jewish Coalition for Religious Liberty in support of neither party filed.May 9, 2022](#)

[Brief amicus curiae of Defense of Freedom Institute for Policy Studies filed. VIDED.May 9, 2022](#)

[Brief amici curiae of Mark Keith Robinson and Winsome Earle-Sears filed. VIDED.May 9, 2022](#)

[Brief amici curiae of Gail Heriot, et al. filed. VIDED.May 9, 2022](#)

[Brief amicus curiae of Claremont Institutes Center for Constitutional Jurisprudence filed.VIDEDMay 9, 2022](#)

[Brief amicus curiae of Former Attorney General Edwin Meese III filed. VIDED.May 9, 2022](#)

[Brief amicus curiae of Legal Insurrection Foundation filed. VIDED.May 9, 2022](#)

[Brief amicus curiae of The State of Texas filed. VIDED.May 9, 2022](#)

[Brief amici curiae of The Asian American Coalition For Education and The Asian American Legal Foundation filed. VIDED.May 9, 2022](#)

[Brief amicus curiae of Foundation Against Intolerance & Racism filed.May 9, 2022](#)

[Brief amicus curiae of Freedom X filed. VIDED.May 9, 2022](#)

[Brief amicus curiae of Richard Sander filed. VIDED.May 9, 2022](#)

[Brief amici curiae of Ann M. Killenbeck, et al. filed. VIDED.May 9, 2022](#)

[Brief amicus curiae of Parents Defending Education filed. VIDED.](#)

Jun 13, 2022

Motion of respondents Cecilia Polanco, et al. for leave to file Volume IV of the joint appendix in No. 21-707 under seal GRANTED.

[*Jul 19, 2022*](#)

[Brief amicus curiae of David Boyle filed. VIDED.](#)

Jul 22, 2022

This case is no longer consolidated with No. 21-707, Students for Fair Admissions v. University of NC, et al., and one hour is allotted for oral argument. Justice Jackson took no part in the consideration of this order.

[*Jul 25, 2022*](#)

[Brief of respondent President and Fellows of Harvard College filed.Jul 25, 2022](#)

[Brief amici curiae of 25 Harvard Student and Alumni Organizations filed.](#)

Jul 27, 2022

Amici brief of Human Rights Advocates, et al. not accepted for filing. (July 29, 2022 - to be reprinted and resubmitted for cover error.)

[Jul 27, 2022](#)

[Brief amici curiae of Human Rights Advocates, et al. filed. VIDED. \(Aug. 3, 2022\)Jul 28, 2022](#)

[Brief amici curiae of Association of American Medical Colleges, et al. filed. VIDED.Jul 29, 2022](#)

[Brief amici curiae of 1,241 Social Scientists and Scholars on College Access, et al. filed.Jul 29, 2022](#)

[Brief amici curiae of 25 Diverse, California-Focused Bar Associations, et al. filed. VIDED.Jul 29, 2022](#)

[Brief amicus curiae of HR Policy Association filed. VIDED.Jul 29, 2022](#)

[Brief amicus curiae of The Council of the Great City Schools filed. VIDED.Jul 29, 2022](#)

[Brief amicus curiae of Professor F. Andrew Hessick filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of National Asian Pacific American Bar Association, et al. and National LGBTQ+ Bar Association filed. VIDED.](#)

Aug 1, 2022

Amicus brief of Professors of Economics not accepted for filing. (Corrected brief and PDF to be submitted.)

[Aug 1, 2022](#)

[Brief amici curiae of Professors of Economics filed. \(Aug. 16, 2022\)Aug 1, 2022](#)

[Brief amicus curiae of The American Bar Association filed. VIDED.Aug 1, 2022](#)

[Brief amicus curiae of Anti-Defamation League filed.Aug 1, 2022](#)

[Brief amici curiae of The American Psychological Association, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of National School Boards Association, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of American Educational Research Association, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Admissions and Testing Professionals filed. VIDED.](#)

Aug 1, 2022

Amici brief of Admissions and Testing Professionals not accepted for filing. (August 31, 2022--Duplicate submission.)

[Aug 1, 2022](#)

[Brief amicus curiae of National Black Law Students Association filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of National Women's Law Center and 37 Additional Organizations Committed to Race and Gender Equality filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Asian Americans Advancing Justice, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of American Association for Access, Equity and Diversity and Fund for Leadership, Equity, Access and Diversity filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of HBCU Leaders and National Association for Equal Opportunity in Higher Education filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Massachusetts Institute of Technology, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amicus curiae of National Academy of Education filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of American G.I. Forum, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Deborah Cohen and 67 Other Professors filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Georgetown University, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amicus curiae of Constitutional Accountability Center filed. VIDED.Aug 1, 2022](#)

[Brief amicus curiae of United States filed.Aug 1, 2022](#)

[Brief amici curiae of College Board, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of United States Senators and Former Senators filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Students and Alumni of Harvard College filed.Aug 1, 2022](#)

[Brief amici curiae of President and Chancellors of the University of California filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Multicultural Media, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Asian American Legal Defense and Education Fund, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amicus curiae of The Law Firm Antiracism Alliance filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Amherst, Barnard, et al. filed. VIDED.Aug 1, 2022](#)

[Motion of the Solicitor General for leave to participate in oral argument as amicus curiae, for divided argument, and for enlargement of time for oral argument filed.Aug 1, 2022](#)

[Brief amicus curiae of American Federation of Teachers filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Washington Bar Association, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Major American Business Enterprises filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Robert C. "Bobby" Scott, Member of Congress, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Southern Governors filed. VIDED.](#)

Aug 1, 2022

Amicus brief of Empirical Scholars not accepted for filing. (Corrected brief and PDF to be submitted-- August 11, 2022)

[Aug 1, 2022](#)

[Brief amici curiae of Empirical Scholars filed. VIDED. \(Aug. 11, 2022\)](#)

Aug 1, 2022

Brief amici curiae of American Council on Education and 39 Other Higher Education Associations filed. VIDED. (To be reprinted with new PDF submitted.)

[Aug 1, 2022](#)

[Brief amici curiae of American Council on Education and 39 Other Higher Education Associations filed. VIDED. \(Aug. 10, 2022\)Aug 1, 2022](#)

[Brief amici curiae of National Association of Basketball Coaches, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of American Civil Liberties Union, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Deans of U.S. Law Schools filed. VIDED.Aug 1, 2022](#)

[Brief amicus curiae of The University of Michigan filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Legal Scholars Defending Race-Conscious Admissions filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Brown University, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Applied Materials, Inc., et al. filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Professors of History and Law filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Massachusetts et al. filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Adm. Charles S. Abbot, et al. filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Black Women Law Scholars filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Individual Scientists filed. VIDED.Aug 1, 2022](#)

[Brief amici curiae of Faith Organizations, et al. filed. VIDED.](#)

Aug 1, 2022

Amicus brief of National Education Association et al. not accepted for filing. (Corrected version submitted-- August 10, 2022)

[Aug 1, 2022](#)

[Brief amici curiae of National Education Association et al. filed. VIDED.](#)

Aug 1, 2022

Amicus brief of Youth Advocates and Experts on Educational Access not accepted for filing. (Corrected brief and PDF to be submitted.)

[Aug 1, 2022](#)

[Brief amici curiae of Youth Advocates and Experts on Educational Access filed. VIDED. \(Aug. 11, 2022\)](#)

Aug 3, 2022

ARGUMENT SET FOR Monday, October 31, 2022.

[Aug 3, 2022](#)

[Motion of 25 Harvard Student and Alumni Organizations, out of time, for leave to participate in oral argument as amici curiae, for divided argument, and for enlargement of time for oral argument filed.Aug 4, 2022](#)

[Response to motion of 25 Harvard Student and Alumni Organizations from respondent President and Fellows of Harvard College filed.Aug 24, 2022](#)

[Reply of petitioner Students for Fair Admissions, Inc. filed.](#)

Aug 31, 2022

CIRCULATED

Sep 9, 2022

Motion of 25 Harvard Student and Alumni Organizations, out of time, for leave to participate in oral argument as amici curiae, for divided argument, and for enlargement of time for oral argument is DENIED. Justice Jackson took no part in the consideration or decision of this motion.

Sep 9, 2022

Motion of the Solicitor General for leave to participate in oral argument as amicus curiae, for divided argument, and for enlargement of time for oral argument GRANTED. Justice Jackson took no part in the consideration or decision of this motion.

Sep 12, 2022

Record requested from the U.S.C.A. 1st Circuit.

Oct 25, 2022

Record from the U.S.C.A. 1st circuit is electronic and located on the First Circuit docket, also on Pacer. 1 Sealed document (AMENDED SEALED SUPPLEMENTAL APPENDIX) has been electronically filed.

Oct 31, 2022

Argued. For petitioner: Cameron T. Norris, Arlington, Va. For respondent: Seth P. Waxman, Washington, D. C.; and Elizabeth B. Prelogar, Solicitor General, Department of Justice, Washington, D. C. (for United States, as amicus curiae.)

Nov 7, 2022

Record received from the USDC-Massachusetts. Sealed pleadings transmitted electronically. Remainder of pleadings available on PACER.

Jun 29, 2023

Judgment REVERSED. Roberts, C. J., delivered the opinion of the Court, in which Thomas, Alito, Gorsuch, Kavanaugh, and Barrett, JJ., joined. Thomas, J., filed a concurring opinion. Gorsuch, J., filed a concurring opinion, in which Thomas, J., joined. Kavanaugh, J., filed a concurring opinion. Sotomayor, J., filed a dissenting opinion, in which Kagan, J., joined, and in which Jackson, J., joined as it applies to No. 21–707. Jackson, J., filed a dissenting opinion in No. 21–707, in which Sotomayor and Kagan, JJ., joined. Jackson, J., took no part in the consideration or decision of the case in No. 20–1199. (Opinion also for No. 21-707). VIDE.

Jul 7, 2023

Letter from counsel for amici curiae Association of American Medical Colleges, et al. received.

Jul 18, 2023

Record returned to the U.S.C.A.-1st Circuit (sealed supplemental appendix).

Jul 31, 2023

Judgment issued.